

FL-24-001353 HOLIMAN VS HOLIMAN

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-07-14

Motion: Petitioner's Request for Order re Attorney's Fees and Costs, etc.—HEARING REQUIRED. This matter is post-judgment and therefore Family Code section 215 applies. While the Court notes that Petitioner has filed proof of personal service of Respondent, no Responsive Declaration or other opposition has been filed and the Court wishes to ensure that valid notice and service has been effectuated. Aside from this, the Court has questions regarding the "reimbursement" requests with respect to the pending escrow. If there were unresolved liens and the mortgage on the subject residence was not current after escrow was opened, it is unclear how that did not result in unmarketable title and/or failure of pre-escrow conditions. In any event, the Court will need further evidence and testimony before granting reimbursement. As for the putting funds aside out of escrow into the IOLTA of Petitioner's counsel, the Court is inclined to deny that request without prejudice but, if necessary and deemed appropriate, to order such funds deposited to a blocked, interest-bearing and FDIC insured bank pending further orders. Regarding the claim of omitted asset, i.e., the "Bay Area Painters and Tapers Pension," the Court notes that this plan was indeed expressly adjudicated in the parties final judgment: see Judgment, MSA, p. 10 In. 15-15. Whether it has been divided or not does not alter its status as a non-omitted asset. FL-25-000481-CISNEROS VS CUEVAS Petitioner's Request for Order re Vacate Dismissal, etc.—DENIED, without prejudice. The Petition was filed on February 20, 2025. No proof of service of summons was ever filed and the Respondent did not file a Response or make a general appearance. Petitioner failed to appear at the Case Management Conference on July 25, 2025, and the Court issued an Order to Show Cause re dismissal for failure to appear and failure to prosecute. Petitioner then failed to respond and failed to appear at the show cause hearing and the Court ordered the case dismissed on April 3, 2026. While Petitioner's order request has been filed within six (6) months of the Court's dismissal order and seeks relief pursuant to Code of Civil Procedure section 473(b), Petitioner's declaration does not establish sufficient facts for the Court to find that Petitioner's failures to appear and failure to prosecute resulted from mistake, surprise, inadvertence or excusable neglect. Rather, it appears that Petitioner deliberately chose not to prosecute or appear due to concerns regarding possible adverse immigration consequences. Petitioner's declaration does not explain how or when these discoveries were made and what will prevent the same thing from happening again. That said, there is no time limit on alleging irreconcilable differences and Petitioner remains free to file a new dissolution petition whenever she chooses, but is advised if she does so to attend all court hearings and to make sure that she exercises due diligence in pursuing the divorce. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

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